

SENATE BILL 2025

By Lowe

AN ACT to amend Tennessee Code Annotated, Title 16;
Title 17 and Title 40, relative to criminal
magistrates.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 5, is amended by adding the following new part:

40-5-301.

(a) There is created a pilot project to provide for criminal magistrates in the ten (10) counties in which the criminal courts experience the highest judicial caseload, as determined by the comptroller of the treasury in the annual weighted caseload study, required by § 16-2-513.

(b) By December 1, 2026, the administrative office of the courts must notify the legislative body of each of the ten (10) counties that are eligible to participate in the pilot project.

40-5-302.

(a) Upon being notified of eligibility under § 40-5-301, the legislative body of an eligible county may, by ordinance, create the position of criminal magistrate within the county.

(b) Following enactment of such an ordinance, but no sooner than January 1, 2027, the judges of the county with criminal jurisdiction may appoint the criminal magistrate, who shall serve at the pleasure of the majority of the judges of the county with criminal jurisdiction. As used this part, "judges of the county with criminal jurisdiction" does not include general sessions judges.

40-5-303.

The duties of the criminal magistrate are to:

- (1) Conduct arraignments, pursuant to Rule 10 of the Tennessee Rules of Criminal Procedure;
- (2) Conduct initial appearance hearings, pursuant to Rule 5 of the Tennessee Rules of Criminal Procedure, and set initial appearance bonds, pursuant to § 40-11-118;
- (3) Determine a defendant's indigency status;
- (4) Accept entry of pleas of guilt, pursuant to Rule 11 of the Tennessee Rules of Criminal Procedure, for misdemeanors and Class D and Class E felonies;
- (5) Issue search warrants and arrest warrants;
- (6) Conduct preliminary hearings, pursuant to Rule 5.1 of the Tennessee Rules of Criminal Procedure; and
- (7) Review and issue summary adjudication orders, if appropriate, for all collateral petitions for all misdemeanors and Class D and Class E felonies. As used in this section, "collateral petitions" include, but are not limited to, motions to modify or waive sentence requirements, post-conviction relief petitions, and petitions for writs of error coram nobis.

40-5-304.

- (a) The term of a criminal magistrate is four (4) years. The criminal magistrate may be removed from office by majority vote of the judges of the county with criminal jurisdiction.

(b) The criminal magistrate must be compensated from the general fund of the county in an amount to be determined by the majority of the elected judges of the county with criminal jurisdiction and subject to the approval of the legislative body.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.